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File No.: EXP202213543

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on November 21, 2022. The complaint is directed against INTERURBANA DE AUTOBUSES, S.A. with NIF A28170207 (hereinafter, the respondent). The reasons for the complaint are as follows: the claimant states that the respondent company has provided, without their consent, their personal data to the unions in paper format and, subsequently, the personal data of all the company's employees has been published on the notice boards; furthermore, it is noted that all employees, other companies, and also individuals from outside the boarding area (platforms 32 and 33) can access the notice board, and personal data can be captured with a mobile phone camera from a distance of 1.5 meters; the claimant considers that their postal address is unnecessary for the holding of union elections, as their residence can be located through Google.

The claimant provides:

- A copy of a printed sheet, signed on 11/19/2022, where the published data can be seen: name, surname, registration number, position, date of hire, seniority date, date of birth, sex, and postal address.
- A video of the publication of the aforementioned sheet with personal data where the notice board is visible.
- Photographs of the printed sheet and its location on the notice board.
- A screenshot of the search result conducted on Google for their address.
- An electoral calendar for the union elections and the minutes of the establishment of the electoral table.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 12/21/2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 12/29/2022 as evidenced by the acknowledgment of receipt in the file.

THIRD: On 02/21/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

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FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On 03/09/2023, a request for information was sent, and from the response received, it is inferred:

- The entity states that due to an error by Human Resources, an electoral roll was not printed but a complete list of employees. There is a list in the system called "ELECTORAL ROLL" that should have been extracted.

The published roll included the data that must be included for companies with more than 50 employees plus the postal address.

They were not aware of the error in the roll until the Agency's request, as no employee had reported it.

- Regarding the location, they state that the workplace is a ticket sales booth that employees of the company access through a back hallway not accessible to the public. This hallway is locked.

Although several booths can be accessed from the hallway, only the booth corresponding to the company is occupied.

The list of the roll was placed by the Delegate on the notice board in the hallway, and only company personnel and the security guard can access it. The keys are held only by the Delegate, the ticket seller, and security.

They have provided photographs of two notice boards of the company. One of which (the smaller one) is located inside the sales booth, and the other, where the roll was published, is located in the aforementioned access hallway.

In this regard, the photograph provided by the claimant of the location of the board where the roll was published matches the one provided by the company.

The roll was published exclusively during the election period.

- The ticket seller has confirmed that the roll was indeed published on the hallway board and has informed them that the claimant (...) took photos of the board.

- By email dated April 12, they reminded Human Resources of the importance of obtaining the roll with strictly legal data.

FIFTH: On 12/26/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c), classified in Article 83.5.a) of the GDPR.

SIXTH: On 01/03/2024, the initiation agreement was notified, with the respondent requesting an extension of the deadline on 01/10/2024, as well as a copy of the file, deadline

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which was granted and a copy sent by the instructor's written communication dated 11/01/2024.

On 19/01/2024, the respondent submitted a written statement of allegations, stating, in summary:

contextualization of the facts: that the published census only contained incomplete data regarding the addresses of two of the nine workers, that the information contained in the census was not immediately accessible from the platform, and that the typical act by the employee responsible for carrying out the processing operation fell outside the scope of control and due diligence required of the respondent; the absence of the principle of culpability; violation of the principle of proportionality; the application of mitigating circumstances not taken into account; the filing of the case and, subsidiarily, a reduction of the sanction.

SEVENTH: On 21/03/2024, the instructor of the procedure agreed to open a period for the presentation of evidence, agreeing on the following:

- To consider as reproduced for evidentiary purposes the claims filed by the claimants and their documentation, the documents obtained and generated by the Inspection Services that are part of the file.

- To consider as reproduced for evidentiary purposes the allegations to the initiation agreement presented by the respondent and the accompanying documentation.

EIGHTH: On 28/08/2024, a Proposal for Resolution was issued stating that the respondent should be sanctioned with a fine of €70,000 (seventy thousand euros) for violation of Article 5.1.c) of the GDPR, an infringement classified under Article 83.5.d) of the GDPR.

On 10/09/2024, the respondent submitted a written statement of allegations, summarizing: that what was submitted by the respondent has not been taken into consideration; that both the allegations and the documentation provided undermine the content of the Proposal; the filing of the present case, subsidiarily, the formulation of a warning, or the application of a lesser sanction.

NINTH: From the actions taken in the present procedure, the following have been established,

PROVEN FACTS

FIRST. On 20/06/2022, a written communication from the claimant was received by the AEPD stating that the respondent had provided, without their authorization or consent, their personal data to the unions in paper format, which was subsequently published on the company's bulletin boards; it is noted that access to the bulletin board is not limited to workers, as it is visible from an external window in the bus station platform area, with personal data being viewable with a mobile phone camera from a distance of 1.5 meters; it is considered that the postal address is unnecessary data for the holding of union elections.

SECOND. The Minutes of the Constitution of the Electoral Table and the electoral calendar for union elections have been submitted.

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THIRD. Printed copy of the signed sheet dated 11/19/2022, Bus Station of ***LOCALITY.1, which contains the personal data of 9 workers; the following personal data of the claimant is visible: name, surname, employee number, position, date of hire, date of seniority, date of birth, gender, and address.

FOURTH. Video recordings have been submitted, made both from the hallway and from the window of the platform of the bus station where the Bulletin Board is visible, containing the information expressed in the previous fact.

FIFTH. The responding party, in a written statement dated 04/12/2023 in response to the request made by the acting inspector, has stated the following:

“(…)

Unfortunately, the Human Resources person who was supposed to prepare the census for the union elections did not print a census for the elections but a complete census of workers... That census should never have contained all that information.

2.- The workplace of ***LOCALITY.1 is a ticket booth open to the public in a bus station and the hallway leading to that booth which is locked and where lost items such as suitcases or similar are left. The census was placed by the Delegate of ***LOCALITY.1 on the board located in the hallway leading to the ticket booths (the only booth occupied in that hallway is ours), so access to the census can only be had by personnel from our company or the security guard of the bus station who could enter in case of an emergency or to leave a lost item if the ticket seller is not present. It is not publicly accessible, and the only people who have the key to the hallway are the Delegate, the ticket seller, and Security. Not even the drivers have a key and must ask the ticket booth to open the door to the hallway where the board is located.

We attach photos of the two boards we have. One small, inside the ticket booth itself, which would be seen by travelers (very far away). And another in the hallway leading to the ticket booth, exclusive for our workers, and as can be seen, it only contains company information, which is larger and where the census was placed.

The ticket seller informs us that she confirms that the census was there and that one day she saw the former workers' representative, who had been dismissed by his colleagues and for that reason new elections were called, taking photos of the board, but that she did not report it because she did not consider it important.”

3.- No measures have been taken regarding the placement of the census since only employees of the company can access it and not third parties, and we understand that it is a suitable place for the placement of the census.

“(…)

All members of HR have been informed of the importance of generating censuses with strictly legal data for a census for union elections and no other personal data, using the report from the program that is created to extract that data exclusively. By email on April 12.

“(…)”

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures.”

II

Allegations to the Initiation Agreement

1. Firstly, the responding party alleges its disagreement with the claimed facts and the approach taken regarding them, as the published census only contained the incomplete address data of two of the nine workers assigned to the center and that the information contained in the census was not immediately accessible from the platform.

- Royal Decree 1844/1994, of September 9, which approves the Regulation for elections to the representation bodies of workers in the company, establishes in its Article 6, Labor Census, sections 1 and 3:

“1. The labor census shall conform to model number 2 of the annex to this Regulation.

(...)

3. When it comes to companies or workplaces with 50 or more workers, the labor census shall include the name, two surnames, gender, date of birth, national identity document, category or professional group, and seniority in the company of all workers, distributed in a college of technicians and administrative staff and another of specialists and unqualified workers, and a third college, if so agreed in the Collective Agreement, in accordance with the provisions of Article 71.1 of the Workers' Statute.

(...)”

The responding party has acknowledged the error made by the Human Resources department in printing the complete census of workers instead of the

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Electoral roll as it appears in the computer system. The published roll contains the data of the roll plus the postal address.

It should be noted that the claim leading to the opening of this procedure originates from a letter from an individual who questions the display of their personal data in the electoral roll (specifically regarding the address), without their consent or authorization, on the company's notice board, “(although they later present that of other workers, not mine, I have not authorized it)” and, furthermore, that their residence can be easily located on Google, simply by entering the data provided in the roll; this issue has been substantiated by the acting inspector through a Diligence that is part of the file.

It is true that only two of the nine workers included in the roll have their address data listed; but it is also true that the processing of just one of the workers' addresses would be sufficient to violate the regulations regarding the protection of personal data, specifically the principle of data minimization, by including unnecessary data in the roll.

- Regarding the claim that the information contained in the roll was not immediately accessible from the platform, the claiming party has provided a video recording from the window located on the platform from which the notice board is visible, demonstrating that both with a mobile camera and by simple sight, since the board is not at an excessive distance (1.5 m), the information displayed on this Notice Board can be read as well as photographed, making the exposed data accessible. Additionally, although photographs of two notice boards have been provided, the roll was placed by the Delegate on the board located in a hallway that was not accessible to the public, although it was accessible to all workers of the claimed party, as well as to security personnel, thus these employees had the possibility of accessing the aforementioned data. Furthermore, the sheet containing address data was also accessible to the convening unions, as it should not be forgotten that the employer must provide the necessary means for the normal development of the entire electoral process, being among other obligations of the company:

- To communicate the official notice of the election call to the workers who must form the electoral table and to the representatives of the workers, while also informing the promoters.
- To provide the electoral table with the labor roll of workers (in the corresponding official model), indicating the workers who meet the age and seniority requirements to be electors and eligible.
- To provide an adequate location and the material means so that the electoral table can perform its functions and to its members the necessary time for the perfect development of the entire electoral process.
- To facilitate the use of notice boards and locations for informational and promotional meetings.

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Lastly, in the document dated 04/13/2023, the respondent states that “This census should never have contained all that information.”

2. The respondent claims absence of culpability in the processing carried out.

However, this argument must be rejected; given that the typical conduct has been established, the access to the personal data of at least two workers, including that of the claimant, and its exposure on the company's notice board, including data that is considered unnecessary in accordance with the provisions of Article 5.1.c) of the GDPR, the issue focuses on determining whether such conduct can give rise to administrative liability.

The respondent requests that the procedure be archived due to the absence of culpability, as the essential requirements for imposing an administrative sanction are lacking.

In the field of sanctioning Administrative Law, the principle of culpability prevails, such that the subjective or culpability element is an indispensable condition for the emergence of sanctioning liability. Article 28 of Law 40/2015, on the Legal Regime of the Public Sector (LRJSP), regulates the principle of culpability and provides:

“1. Only individuals and legal entities, as well as, when a law recognizes them the capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous estates, may be sanctioned for acts constituting an administrative infraction, which are responsible for them by way of intent or negligence.”

In accordance with this provision, sanctioning liability can be demanded on the basis of intent or negligence, with mere non-compliance with the duty of care being sufficient in the latter case.

The Constitutional Court, among others, in its ruling STC 76/1999, has declared that administrative sanctions share the same nature as criminal ones, being one of the manifestations of the State's *ius puniendi*, and that, as a requirement derived from the principles of legal certainty and criminal legality enshrined in Articles 9.3 and 25.1 of the Spanish Constitution, their existence is essential for imposing them.

Regarding the culpability of legal entities, it is worth citing STC 246/1991, December 19, 1991 (F.J. 2), according to which, concerning legal entities, the subjective element of culpability must necessarily be applied differently than it is for individuals, and it adds that “This different construction of the attribution

of the authorship of the infraction to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for such protection to be truly effective [...]"

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The decision to archive a sanctioning file may be based on the absence of the element of culpability when the person responsible for the unlawful conduct has acted with all the diligence that is required of them.

It is worth recalling what the STC 246/1991 has stated regarding the culpability of the legal entity: that it does not lack the "capacity to infringe the norms to which it is subject." "Capacity for infringement [...]" that derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective [...]"

In connection with the above, it is necessary to refer to Article 5.2 of the GDPR (principle of proactive responsibility), according to which the data controller shall be responsible for compliance with the provisions of paragraph 1 and capable of demonstrating such compliance. The principle of proactivity transfers to the data controller the obligation not only to comply with the regulations on data protection but also to be able to demonstrate such compliance.

The Opinion 3/2010, from the Article 29 Working Party (WP29) -WP 173- issued during the validity of the repealed Directive 95/46/EC, but whose reflections are applicable today, states that the "essence" of proactive responsibility is the obligation of the data controller to apply measures that, under normal circumstances, ensure that the data protection norms are complied with in the context of processing operations and to have available documents that demonstrate to the data subjects and the supervisory authorities what measures have been adopted to achieve compliance with the data protection norms. And on this matter, one must not forget Article 24.1 of the GDPR, which regarding the responsibility of the data controller states: "Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this Regulation. Such measures shall be reviewed and updated when necessary."

It should be noted what diligence was observed by the responding party in relation to the conduct that should have been observed concerning the examined conduct. The answer is that the diligence that should have been observed was that which was necessary to fulfill the obligations imposed by Article 5.1.c) of the GDPR, which motivated the opening of the procedure.

Therefore, in accordance with the principle of proactivity, the responding party did not adopt a conscious and diligent attitude when publishing on the notice board the census with data that are not necessary, adequate, or pertinent as they exceed the pursued purpose, unnecessary data that could also be visible to third parties from the dock or platform, as well as from the hallway to which personnel of the company/companies had access, and avoiding incidents such as those that led to the complaint and the opening of the procedure, infringing Article 5.1.c) of the GDPR, an attitude and behavior that have not existed in this case, evidencing a lack of diligence.

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3. The respondent party refers to the violation of the principle of proportionality in the imposition of the sanction.

It should be noted that Article 83.1 of the GDPR states that "Each supervisory authority shall ensure

that the imposition of administrative fines in accordance with this Article for the infringements of this Regulation referred to in paragraphs 4, 5 and 6 are, in each individual case, effective, proportionate and dissuasive.”

Therefore, fines must be effective, proportionate, and dissuasive in achieving the purpose intended by the GDPR, as deduced from the preceding provision.

It is true that for this system to function with all its guarantees, it is necessary for several elements to be deployed in an integral and complete manner. The application of rules foreign to the GDPR regarding the determination of fines in each of the Member States applying their national law, whether due to aggravating or mitigating circumstances not provided for in the GDPR - or in the LOPDGDD in the Spanish case as allowed by the GDPR itself - would undermine the effectiveness of the system, which would lose its meaning, its teleological purpose, the will of the legislator, resulting in fines imposed for different infringements ceasing to be effective, proportionate, and dissuasive. In this way, it would also deprive the interested parties of the effective guarantee of their rights and freedoms, weakening the uniform application of the GDPR. The mechanisms for protecting the rights and freedoms of citizens would be diminished, which would be contrary to the spirit of the GDPR.

The GDPR is endowed with its own principle of proportionality that must be applied in its strict terms. Regarding the principle of proportionality of sanctions, the National Court has stated in numerous rulings that the principle of proportionality cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in the imposition of sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that every sanction must be determined in accordance with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the fact. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, the present resolution does not violate the principle of proportionality in the determination of the imposed sanction, resulting in a measured and proportionate response to the severity of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that justify the requested reduction, especially considering the amount to which such sanctions may ascend in accordance with Article 83.5 of the GDPR, which provides for the infringement of Article 6.1 of the GDPR, “with administrative fines of...

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€20,000,000 at most or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

Well, the party being claimed against is a public limited company, with sales of €48,732,000 in the 2022 financial year, according to Axexor.

4. The party being claimed against asserts and insists that in the present case there are a series of mitigating elements of culpability that should be taken into account for the purpose of determining the severity of the sanction.

In this way, it refers to the absence of recidivism for committing infractions of the same nature; however, the aforementioned circumstance cannot be accepted; the Judgment of the AN, dated 05/05/2021, states: “On the other hand, it considers that the lack of a previous infraction should be appreciated as a mitigating factor. Well, Article 83.2 of the GDPR establishes that for the imposition of the administrative fine, among other things, the circumstance “e) any previous infringement committed by the controller or the processor” must be taken into account. It is an aggravating circumstance; the fact that the conditions for its application do not exist means that it cannot be considered, but it does not imply or allow, as the claimant intends, its application as a mitigating factor.”

The category of the affected personal data since the address does not constitute a category of special data; the possibility that the conduct of the affected party may have induced the commission of the infraction and the absence of benefits that the infringing conduct has generated for the party being claimed against.

Any company, regardless of its size, has the obligation to comply with the regulations on the protection

of personal data from the moment it processes personal data; small, medium, and large companies that process data of customers, suppliers, employees, partners, or any other figure for the development of their activities are obliged to comply with the GDPR and the LOPDGDD.

As compliance with data protection regulations is an obligation for the party being claimed against, it cannot claim that the absence of recidivism in committing infractions of the same nature, the fact that the processed data do not have the status of specially protected, or the absence of any benefit in its actions, can be adopted as mitigating factors of the infringing conduct for the purpose of reducing the sanction to be imposed, although they could be used as aggravating factors of such conduct, in the event that they occur.

III

Allegations to the Resolution Proposal

Firstly, the party being claimed against alleges that the Resolution Proposal has been issued without taking into account the documentation provided and that the allegedly published data of the claimant's address and other workers in the census cannot be considered as such, since with the information included, the address cannot be located.

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However, neither the allegations nor the documentation that it claims to have provided diminish what is stated in the notified Proposal; it must be clarified that what is being imputed in the present procedure is the violation of the principle of minimization, by including in the census data that are not adequate or pertinent, which should be limited to those necessary for the intended purpose, in this case, the union elections.

Therefore, whether the list could or could not be viewed from the window that opened onto the dock or platform of the station or in the hallway where the bulletin board was located is inconsequential because the typical conduct is the insertion of a column related to the workers' home addresses in the census, as it is unnecessary for the intended purpose.

Moreover, the limitation referred to the purpose pursued by the processing must be carried out in such a way that minimizes and limits the number of people who can access the data, and in the present case, this has not occurred either.

On the other hand, as was already indicated in the Proposal, the acting inspector noted in the Diligence that "the result of the Google search of the address provided by the claimant is incorporated into the inspection proceedings in question," that is to say, it was evidenced that by conducting searches through Google, a map of the location of the address provided by the claimant was obtained, which matched and appeared in the list provided; in other words, contrary to what was stated by the responding party, the residence could be located through the search engine.

The responding party also claims that everything was due to a specific, unintentional, fortuitous, and limited human error, exposing a sheet of a census not intended for that purpose on the bulletin board, which included the column of addresses.

However, this argument cannot be accepted; the processing of the address data has been carried out in violation of the principle of minimization, and it cannot be justified, as the responding party intends, by the existence of a mere involuntary and fortuitous error, but rather it precisely evidences the existence of negligent conduct that led to the insertion on the bulletin board of data from the claimant that were clearly inadequate, unnecessary, and irrelevant.

- Secondly, the responding party alleges and insists that the documentation provided undermines the content of the notified Resolution Proposal, considering that it has been proven that the infringement does not exist, thus violating the principles of legality, culpability, and proportionality in the imputation of infringements.

However, the aforementioned argument is considered irrelevant; in the present case, an infringement of the principle of data minimization provided for in Article 5.1.c) of the GDPR is attributed to INTERURBANA DE AUTOBUSES in the sanctioning procedure initiated, which states: "Personal data

shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

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(...)"

The principles governing processing, established in Article 5 of the GDPR, are mandatory for the data controller. Moreover, Article 5.2 of the GDPR introduces the principle of proactive accountability, under which the data controller is obliged to comply with the principles described in Article 5.1, which includes the principle of data minimization, and to be able to demonstrate compliance, thereby placing the burden of proof regarding this obligation on the data controller.

As stated by the Legal Office of the AEPD, the GDPR has represented a paradigm shift in the regulation of the right to personal data protection, which is now based on the principle of "proactive accountability." The explanatory memorandum of the LOPDGDD states that "the greatest novelty presented by Regulation (EU) 2016/679 is the evolution from a model fundamentally based on compliance control to one that rests on the principle of active responsibility."

Regarding the principle of data minimization, Recital 39 of the GDPR states that "Personal data should only be processed if the purpose of the processing cannot reasonably be fulfilled by other means."

The principle for which the responding party is held responsible is connected to the "necessity" of processing a specific data point. The term "necessity" has its own independent meaning in Union Law. The Court of Justice of the European Union considers it to be an "autonomous concept of Community Law" (CJEU judgment of 16/12/2008, case C-524/2006, paragraph 52), and the European Court of Human Rights asserts that the "adjective necessary is not synonymous with 'indispensable' nor does it have the flexibility of the expressions 'admissible,' 'ordinary,' 'useful,' 'reasonable,' or 'desirable'" (paragraph 97 of the ECHR judgment of 25/03/1983).

It is pertinent to bring up the considerations regarding the principle of data minimization made by the European Data Protection Board (EDPB) in Guidelines 4/2019, "on Article 25, Data protection by design and by default," version 2.0, dated 20/10/2020, adopted in compliance with the function assigned to it by Article 70 of the GDPR to ensure its consistent application. In paragraph 74 of these guidelines, it is established that: "Firstly, data controllers must determine whether they even need to process personal data for their relevant purposes. The controller must verify whether the relevant purposes can be achieved by processing less personal data, or by using less detailed or aggregated personal data, or without having to process personal data at all. This verification must take place before any processing, but it can also be carried out at any time during the processing cycle." (Paragraph 74).

And in paragraph 76, Guidelines 4/2019 indicate that "Essential elements by design and by default regarding data minimization" include, among others, the following:

• Data avoidance: All processing of personal data should be avoided when possible to fulfill the relevant purpose.

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• Limitation: The amount of personal data collected will be limited to what is strictly necessary for the intended purpose.

• Access Limitation: The processing of data will be configured in such a way as to minimize the number of people who need to access personal data to perform their functions, and access will be limited accordingly.

- Relevance: Personal data must be relevant to the processing in question, and the data controller must be able to demonstrate such relevance.
- Necessity: Each category of personal data will be necessary for the specified purposes and may only be processed if it is not possible to achieve the purpose by other means.

Now, in the present case, the responding party publicly posted the electoral roll on the notice board containing the address, a piece of information that was neither necessary nor appropriate, nor relevant, as it should only be processed in accordance with the intended purpose, regardless of whether it is accessible to third parties or not.

Regarding the absence of culpability, it should be noted that any administrative sanction is subject to the principle of culpability, whether by intent or negligence, and, through the legally established procedure, the absence of culpability will determine the non-existence of the infringement. That is to say, typical conduct would not be sanctionable without the concurrence of intent or fault.

However, in the present case, there is no absence of culpability; rather, we are faced with an infringing conduct, typical, which allows us to affirm the concurrence of culpability. The Supreme Court in its Judgment of 23/01/1998 states, "... although the culpability of the conduct must also be subject to proof, it must be considered in relation to the assumption of the corresponding burden that ordinarily the volitional and cognitive elements necessary to appreciate it are part of the proven typical conduct, and that their exclusion requires that the absence of such elements be demonstrated, or in its normative aspect, that the diligence required by the one claiming its non-existence has been employed; in summary, the mere invocation of the absence of fault is not sufficient for exculpation against a typically unlawful behavior."

On the other hand, the responding party itself has acknowledged the facts by stating in relation to the address data:

"(...)

Unfortunately, the Human Resources person who was supposed to prepare the electoral roll for the union elections did not print an electoral roll but a complete list of employees... That roll should never have included all that information.

"(...)"

- Finally, the responding party insists that there is a violation of the principle of proportionality, reiterating what has already been stated in previous allegations and arguing that the aforementioned principle requires that all mitigating circumstances present in this case be taken into account when establishing the sanction, which should therefore be reduced.

In this way, it refers to the absence of recidivism for committing infringements of the same nature; however, the aforementioned circumstance cannot be...

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admitted; the Judgment of the AN, dated 05/05/2021, states: "It considers, on the other hand, that the absence of a prior infringement should be appreciated as a mitigating factor. Indeed, Article 83.2 of the GDPR establishes that, among other circumstances, the following must be taken into account for the imposition of the administrative fine: 'e) any previous infringement committed by the controller or the processor.' The absence of the prerequisite for its application constitutes an aggravating circumstance, which means it cannot be taken into consideration, but does not imply or allow, as the claimant intends, its application as a mitigating factor."

It also argues the category of the affected personal data since the address does not constitute a special category of data; the absence of culpable or negligent conduct; the possibility that the conduct of the affected party may have induced the commission of the infringement; any other aggravating or mitigating factor applicable to the circumstances of the case, such as the absence of benefits that the

infringing conduct has generated for the claimed party.

It should be noted that all the circumstances alleged by the claimed party as mitigating are not applicable as they are inherent to the events that occurred; thus, for example, the collaboration with the AEPD occurred more than three months after the infringement in response to a request for information from the Agency itself and was irrelevant for remedying the infringement or mitigating its possible adverse effects, as required by Article 83.2 f) GDPR; regarding the absence of culpable or negligent conduct, it has already been pointed out and has been proven that the claimed party acted negligently in the processing of data carried out, which constitutes the culpable element of the infringement, so they cannot mitigate the infringement either.

As for the fact that the address data does not constitute a special category of data, it is also irrelevant since it is well known that the data contained in the census are not considered special category data or subject to special protection; on the other hand, it should be noted that the infringement committed does not require an economic or any type of benefit to be obtained by the infringer, so we cannot apply such a circumstance as a mitigating factor of culpability (Article 83.2.k) of the GDPR); and regarding the possibility that the conduct of the affected party may have induced the commission of the infringement, the claiming party, in exercising their right, addressed the authority that has competence in matters of personal data protection, considering their data to be violated.

Therefore, it should be noted that the principle of proportionality has been respected, as the imposed sanction is proportional to the severity of the conduct and the serious lack of diligence.

V

Unfulfilled obligation

Article 5, Principles relating to processing, of the GDPR establishes that:

"1. Personal data shall be:

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(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization");

(...)

The documentation in the file leads us to consider that the respondent violated Article 5.1.c) of the GDPR by including more data in the census than established by the regulations, which has allowed third parties access to the data of the complainant and other employees of the respondent as a result of the publication and insertion in the notice board of the census of the company's workers, which includes the address data, thus violating the principle of data minimization provided for in the aforementioned article.

Article 5 of the GDPR refers to the general principles for data processing. In its paragraph c), it refers to the principle of data minimization, indicating that data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

If we examine the definition, we can deduce that only the personal data that will be processed can be collected, that is, those that are strictly necessary for the processing; that they may only be collected when they are going to be processed and that they may only be used for the purpose for which they were collected, but not for any other objective.

It should be noted that the censuses for union elections are regulated by Royal Decree 1844/1994, of September 9, which approves the Regulation of elections to the representation bodies of workers in the company, which has modified certain articles of Law 8/1980, of March 10, Workers' Statute; its Article 6, labor census, establishes in its paragraph 3 the data that must be part of the electoral census: "3. When it comes to companies or workplaces with 50 or more workers, the labor census will include the name, two surnames, sex, date of birth, national identity document, professional category or group, and seniority in the company of all workers, distributed in a college of technicians and administrators and another of specialists and unqualified, and a third college, if so agreed in the

Collective Agreement, in accordance with the provisions of Article 71.1 of the Workers' Statute." However, in a written response to the information request from the AEPD, dated 04/13/2023, the error made was confirmed, stating that:

"(...)

Unfortunately, the Human Resources person who was supposed to prepare the census for the union elections did not print an election census but a complete census of workers... That census should never have included all that information.

(...)

The ticket seller informs us that she confirms that the census was there and that one day she saw the former workers' representative, who had been dismissed by his colleagues and for that reason new elections were called, taking photos of the notice board, but she did not report it because she did not consider it important.

(...)

We regret the human error that occurred and its importance has been communicated to the HR workers to prevent it from happening again."

It has been verified that the photographs provided by the complainant of the location of the board where the census was published match those provided by the respondent.

Also, through the diligence of the acting inspector, it has been verified that by conducting searches on Google, a map of the location of the address listed by the complainant can be obtained, and an entrance is visualized.

Recital 39 of the GDPR also states that: "...Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed."

As previously mentioned, it is necessary to distinguish between the labor census and the electoral census; the latter is related to union elections and is regulated by Royal Decree 1844/1994, of September 9, which approves the Regulation of elections to the representation bodies of workers in the company, which has modified certain articles of Law 8/1980, of March 10, Workers' Statute;

VI

Classification of the infringement of Article 5.1.c) of the GDPR

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is punishable, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription that they are: "Infringements considered very serious:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, those infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

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a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

VII

Sanction for infringement of Article 5.1.c) of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

- In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR for which the respondent is held responsible, the following factors are considered concurrent:

The nature and gravity of the infringement as it should not be forgotten that we are facing a violation of the principle of data minimization, which is reproached in the GDPR with the utmost severity, considering that entities engaged in the processing of personal data must comply with the requirements contained in the regulation (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement; there is a serious lack of diligence in the actions of

the entity in transferring data that is considered unnecessary without proceeding to its minimization. Also connected with the degree of diligence that the data controller is obliged to exercise in complying with the obligations imposed by data protection regulations, the ruling SAN of 17/10/2007 can be cited, which, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...). the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant is constant and abundant."

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The handling of personal data must emphasize rigor and exquisite care to comply with the legal provisions regarding this matter" (Article 83.2.b) of the GDPR).

The activity of the allegedly infringing entity is linked to the processing of data from both clients and third parties. The respondent, given the nature of their activity, finds it essential to process personal data of clients as well as third parties, which makes the significance of their conduct subject to this procedure undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

In light of the aforementioned circumstances, it is deemed appropriate to establish a sanction of 70,000 euros.

VII

Adoption of Measures

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are outlined in Article 58.2, paragraphs a) to j).

Having confirmed the infringement, it is appropriate to order the responsible party to adopt adequate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Therefore, the respondent is ordered to adjust the processing activities subject to this procedure to the applicable regulations within six months from the finality of the sanctioning resolution. The text of this agreement establishes the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures need to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as they are the ones who fully understand their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD. However, in this case, the following measure is indicated for adoption: the implementation or establishment of measures that ensure compliance with what is stated in Article 5.1.c) of the GDPR, the principle of data minimization, which prevents its violation.

It is warned that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on INTERURBANA DE AUTOBUSES, S.A., with NIF A28170207, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of €70,000 (seventy thousand euros).

SECOND: TO ORDER INTERURBANA DE AUTOBUSES, S.A., with NIF A28170207, to comply with Article 58.2.d) of the GDPR, within six months from the date this resolution becomes final and enforceable, to demonstrate that it has implemented measures that ensure compliance with the provisions of Article 5.1.c) of the GDPR and prevent its violation.

THIRD: TO NOTIFY this resolution to INTERURBANA DE AUTOBUSES, S.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that it must pay the imposed fine once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection

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